

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index No.

Date Filed:

Plaintiff designates

KINGS County as
the place of trial

JENELLE N. GILLIARD,

Plaintiff,

The basis of venue is
Place of incident

-against-

SUMMONS

THE CITY OF NEW YORK,
P.O. DANIEL O'HARE (SHIELD #17735)),
P O. "JOHN DOE" #1-10 (Shield # unknown),
P.O. "JANE DOE" #1-10) (Shield # unknown)
(first and last names being fictitious and presently
Unknown, persons intended being police officers
And/or personnel who were involved in the incident
of February 11, 2017),

Plaintiff resides at
262 E. 39th Street
Brooklyn, New York

Defendants.

To the above-named Defendants

YOU ARE HEREBY SUMMONED to answer the Complaint in this action and to serve a copy of your answer, or, if the Complaint is not served with this Summons, to serve a Notice of Appearance, on the Plaintiff's attorney(s) within 20 days after the service of this Summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in the case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Complaint.

Dated: New York, New York
February 9, 2018

BURNS & HARRIS, ESQS.
Attorney for Plaintiff

By: Wayne A.J. Wattley
Wayne A.J. Wattley
233 Broadway, Suite 900
New York, New York 10279
(212) 393-1000

TO:

CITY OF NEW YORK
100 Church Street
New York, New York 10007

P.O. DANIEL O'HARE
(Shield #17735)
c/o 67th Precinct
2820 Snyder Avenue
Brooklyn, New York 11226

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS-----X Index No.:
JENELLE N. GILLIARD,

Plaintiff,

- against -

VERIFIED COMPLAINT

THE CITY OF NEW YORK,
P.O. DANIEL O'HARE (SHIELD #17735)),
P.O. "JOHN DOE" #1-10 (Shield # unknown),
P.O. "JANE DOE" #1-10) (Shield # unknown)
(first and last names being fictitious and presently
Unknown, persons intended being police officers
And/or personnel who were involved in the incident
of February 11, 2017),

Defendants.

-----X

Plaintiff JENELLE N. GILLIARD, by her attorneys, BURNS & HARRIS, as and
for her Complaint herein, respectfully alleges upon information and belief:

1. That the plaintiff JENELLE N. GILLIARD, at all times herein mentioned was and still is a resident of the County of Kings, City and State of New York.
2. That defendant CITY OF NEW YORK (hereinafter "CITY") is a Municipal Corporation incorporated pursuant to the laws of the State of New York, which operates the New York City Police Department (hereinafter "NYPD"), and as such is the public employer of the defendant officers herein.
3. That defendant P.O. DANIEL O'HARE (Shield #17735) was an NYPD officer, and at all times relevant hereto, acted in that capacity as agent, servant and/or employee of Defendant CITY and within the scope of his employment.

4. That on or about February 11, 2017, defendant P.O. DANIEL O'HARE was assigned to the 67th precinct of the NYPD at the time of the occurrence alleged in this complaint. He is being sued in both his individual and official capacities.

5. That defendants P.O. "JOHN DOE" #1-10 (Shield #unknown) were NYPD officers, and at all times relevant hereto, acted in that capacity as agents, servants and/or employee of defendant CITY and within the scope of their employment.

6. That on or about February 11, 2017, defendants P.O. "JOHN DOE" #1-10 were assigned to the 67th precinct of the NYPD at the time of the occurrence alleged in this complaint. They are being sued in both their individual and official capacities.

7. That defendants P.O. "JANE DOE" #1-10 (Shield # unknown) were NYPD officers, and at all times relevant hereto, acted in that capacity as agents, servants and/or employee of defendant CITY and within the scope of their employment.

8. That on or about February 11, 2017, defendants P.O. "JANE DOE" #1-10 were assigned to the 67th precinct of the NYPD at the time of the occurrence alleged in this complaint. They are being sued in both their individual and official capacities

9. That at all times relevant hereto, defendants were acting under the color of state and local law. Defendants are sued in their individual and official capacities. At all relevant times hereto, defendant CITY was responsible for making and enforcing the policies of the NYPD and was acting under the color of law, to wit, under the color of the statutes, ordinances, regulation, policies, customs and usages of the State of New York and/or the City of New York.

10. That at all times relevant hereto, defendant CITY operated, maintained, managed, supervised and controlled a police department as part of and in conjunction with its municipal functions.

11. That at all times relevant hereto, defendant P.O. DANIEL O'HARE (SHIELD # 17735), is employed as a police officer by the NYPD.

12. That at all times relevant hereto, defendant P.O. DANIEL O'HARE (SHIELD # 17735) was, upon information and belief, assigned to the 67th precinct located at 2820 Snyder Avenue, County of Kings, City and State of New York.

13. That at all times relevant hereto, defendants P.O. "JOHN DOE" #1-10, are employed as a police officers by the NYPD.

14. That at all times relevant hereto, defendants P.O. "JOHN DOE" #1-10 were, upon information and belief, assigned to the 67th precinct located at 2820 Snyder Avenue, County of Kings, City and State of New York.

15. That at all times relevant hereto, defendants P.O. "JANE DOE" #1-10, are employed as a police officers by the NYPD.

16. That at all times relevant hereto, defendants P.O. "JANE DOE" #1-10 were, upon information and belief, assigned to the 67th precinct located at 2820 Snyder Avenue, County of Kings, City and State of New York

17. That at all times relevant hereto, all individual defendants were acting in the scope and course of their employment by the CITY OF NEW YORK and NYPD.

18. That all of the conditions precedent to the commencement of an action against the defendant CITY OF NEW YORK have been met in that a Notice of Claim was filed with the CITY OF NEW YORK on May 3, 2017 on behalf of plaintiff JENELLE N.

GILLIARD and within 90 days of the accrual of this cause of action; more than thirty (30) days have elapsed since the presentation of the Notice of Claim, and the claim remains unadjusted by the CITY OF NEW YORK. This action has been commenced within one (1) year and ninety days from the accrual of this cause of action, and THE CITY OF NEW YORK has conducted a statutory hearing of the plaintiff JENELLE N GILLIARD on August 25, 2017.

FIRST CAUSE OF ACTION:
(POLICY OF NON-FEASANCE IN THE
PROTECTION OF PLAINTIFF JENELLE N. GILLIARD's CIVIL RIGHTS)

19. That at all times relevant hereto, defendant CITY employed the Defendant P.O. DANIEL O'HARE (Shield #17735), as a police officer in the NYPD.

20. That upon information and belief, defendant P.O. DANIEL O'HARE (Shield #17735) is a graduate of The Police Academy of the City of New York.

21. That at all times relevant hereto, defendant CITY employed the defendants "JOHN DOE" #1-10, as police officers in the NYPD.

22. That upon information and belief, defendants "JOHN DOE" #1-10 are graduates of The Police Academy of the City of New York.

23. That at all times relevant hereto, defendant CITY employed the defendants "JANE DOE" #1-10, as police officers in the NYPD.

24. That upon information and belief, defendants "JANE DOE" #1-10 are graduates of The Police Academy of the City of New York

25. That at all times relevant hereto, defendant CITY had the duty to competently and sufficiently hire, train and retain within the Police Academy and at the Command, Precinct and Patrol levels, the defendant officers in the protection of the

Constitutional rights of the plaintiff under the Fourteenth Amendment to the United States Constitution.

26. That in addition, the defendant CITY, had the duty to competently and sufficiently hire, train and retain within the Police Academy and at the Command, Precinct and Patrol levels, the defendant officers to conform their conduct to a standard, established by law, for the protection of citizens, such as plaintiff, against unreasonable risk of harm by conducting themselves in such a manner as not to intentionally, wantonly, and/or negligently inflict injuries to citizens such as the plaintiff herein.

27. That each and all of the acts of the defendants alleged herein were done by the defendants, their agents, servants and/or employees, and each of them, not as individuals, but under the color and pretense of the statutes, ordinances, regulations, customs and usages of the State of New York, the City of New York and the County of Kings, and under the authority of their office as police officers of said state, city and county.

28. That the defendant CITY failed to competently and sufficiently hire, train and retain the defendant officers to conform and conduct themselves to a statute established by law for the protection of citizens, such as plaintiff, against unreasonable risk of harm by conducting themselves in such a manner as not to intentionally, wantonly and/or negligently inflict injuries to citizens such as the plaintiff herein.

29. That on or about February 11, 2017, and prior thereto, the defendant CITY, in violation of 42 U.S.C. § 1983 caused the plaintiff to be injured and damaged in failing to competently hire, train and retain police officers, including but not limited to the defendant officers to conform and conduct themselves to a statute established by law for the

protection of citizens, such as plaintiff, against unreasonable risk of harm by conducting themselves in such a manner as not to intentionally, wantonly and/or negligently inflict injuries to citizens such as plaintiffs herein.

30. That on or about February 11, 2017, plaintiff JENELLE N. GILLIARD, was lawfully and properly present at/or near 262 East 39th Street, County of Kings, City and State of New York.

31. That on or about February 11, 2017, defendant P.O. DANIEL O'HARE (Shield #17735) was present and on duty at/or near 262 East 39th Street, County of Kings, City and State of New York, as part of his regular and official employment as a police officer for defendant, CITY.

32. That on or about February 11, 2017, defendants P.O. "JOHN DOE" #1-10 were present and on duty at/or near 262 East 39th Street, County of Kings, City and State of New York, as part of their regular and official employment as a police officer for defendant, CITY.

33. That on or about February 11, 2017, defendants P.O. "JANE DOE" #1-10 were present and on duty at/or near 262 East 39th Street, County of Kings, City and State of New York, as part of their regular and official employment as a police officer for the defendant, CITY.

34. That commencing on February 11, 2017 at approximately 10:30 p.m. the individual defendant officers, assaulted and battered and wrongfully and falsely arrested, detained and confined plaintiff JENELLE N. GILLIARD, without probable or just cause, grounds or provocation.

35. That following said assault, battery and arrest, defendant officers wrongfully detained and arrested plaintiff JENELLE N. GILLIARD at the 67th precinct and imprisoned her.

36. That immediately thereafter, aforementioned defendants, their agents, servants and employees falsely arrested, searched, seized, detained, assaulted, battered, abused, harassed, caused plaintiff to be the victim of excessive force, deprived of medical treatment, not read her rights, not arraigned within 24 hours of her arrest, and imprisoned the plaintiff and deprived her of her rights and liberties as set forth in the Constitutions of the United States and of the State of New York, unreasonably handcuffed her too tightly and threatened the plaintiff with the use of physical force.

37. That following said arrest, defendant officers wrongfully and falsely accused and charged plaintiff JENELLE N. GILLIARD with violations of various sections of Penal Law of the State of New York under the jurisdiction of the Criminal Court of the City of New York, County of Kings.

38. That the false arrest and imprisonment of plaintiff JENELLE N. GILLIARD was caused by all of the defendants, their servants, agents and/or employees, without warrant, authority of law, or any reasonable cause or belief that she was, in fact, guilty of the crimes with which she was charged.

39. That as a result of the aforesaid arrest, plaintiff JENELLE N. GILLIARD was forcibly hand-cuffed, detained, transported and treated as a common criminal and incarcerated and imprisoned at various facilities owned, operated, maintained and controlled by defendant CITY for approximately six and one-half hours and thereby

deprived of her rights, liberties and freedoms under color of State Law in violation of 42 U.S.C. §1983.

40. That as a further result of the deprivation of plaintiff JENELLE N. GILLIARD's right to be free from the deprivation of rights guaranteed to her by the Fourth, Fifth and Fourteenth Amendment to the United States Constitution, she was caused to suffer injury and damage both mentally and physically, severe nervous shock and emotional distress and illness.

41. That on or about February 11, 2017, in violation of the rights, privileges and immunities guaranteed to her under the Fourteenth Amendment to the United States Constitution and under color of State law, defendant officers and each of them acting individually and in concert, in violation of 42 U.S.C. Section 1983, while on duty, detained the plaintiff, even though the defendants knew or should have known that the plaintiff was wholly innocent.

42. That all of the actions of the defendants, their agents, servants and/or employees were committed with the intention to cause bodily and mental injury to the plaintiff; to arrest, restrain and imprison the plaintiff without her consent; that the plaintiff was at all times conscious of her arrest, did not consent to the assault, battery, and false arrest, and the assault, false arrest and imprisonment were not otherwise privileged.

43. That the assault, battery, arrest and imprisonment of the plaintiff were negligent, reckless and intentional and were not justified by probable cause or other legal privilege and the defendants, their agents, servants and/or employees acting under the color of statute, ordinances, regulations, customs and usages of the State, City and County of New York, and under the authority of their office as police officers for the CITY OF NEW

YORK, falsely charged the plaintiff with violations of the Penal Law of the State of New York although the defendants, acting in such capacity, knew that such charges were false.

44. That the defendants, their agents, servants and employees failed to adequately and properly hire, retain, train, supervise, discipline or in any other way control the behavior and performance of the defendants, their agents, servants and/or employees; that in their hiring practices in the exercise of their police functions and their failure to enforce the laws of the State and City of New York is evidence of the negligence, carelessness and reckless lack of cautious regard for the rights of the public, including plaintiff; and that the defendants exhibited a lack of that degree of due care which prudent and reasonable individuals would show in executing the duties of the defendants.

45. That defendant CITY, its agents, servants and/or employees failed to hire, train, supervise, discipline or in any other way control the defendant officers in the exercise of their functions; that their failure to enforce the laws of the State of New York and the City of New York was and is carried out willfully, wantonly, maliciously and with such reckless disregard for the consequences so as to display a conscious disregard for the dangers of harm and injury to citizens of the State and City of New York, including plaintiff herein.

46. That the said prosecution and criminal charges and hearings instituted and procured by the defendants, their agents, servants and/or employees were unlawful and malicious and without any reasonable or probable cause whatsoever; that the commencement and/or continuation of the criminal proceedings by the defendants against the plaintiff was without probable cause with actual malice and terminated in favor of the plaintiff.

47. That on or about February 11, 2017, at approximately 10:30 p.m. of that day, while plaintiff was lawfully and properly at and/or near 262 East 39th Street, County of Kings, City and State of New York, and at subsequent times thereafter, including but not limited to the 67th Precinct, Central Booking and at a detention cell at the Criminal Court Building, County of Kings, City and State of New York, the defendants, their agents, servants and employees maliciously prosecuted and detained plaintiff JENELLE N. GILLIARD, without any just right or grounds therefore.

48. That the plaintiff is and was wholly innocent, and was forced by the defendants to submit to court proceedings.

49. That the defendants, their agents, servants and/or employees, falsely and maliciously and without probable cause or provocation charged the plaintiff with violation of Penal Law of the State of New York.

50. That the defendants, their agents, servants and/or employees acting in the performance of their employment and within the scope of their authority, testified falsely and withheld vital information before a Judge of the Criminal Court of the City of New York, County of Kings.

51. That upon examination, the said charges were falsely and maliciously made. Upon information and belief, the Judge of the Criminal Court of the City of New York, County of Kings, dismissed said charges.

52. That the said prosecution and criminal charges and hearings were instituted and procured by the defendants, their agents, servants and/or employees unlawfully and maliciously and without any reasonable or probable cause whatsoever; that the

commencement and/or continuation of the criminal proceedings by the defendants against the plaintiff was without probable cause.

53. That by reason of the aforesaid unlawful and malicious prosecution, the plaintiff was deprived of her liberty, was subjected to great indignity, humiliation, pain and great distress of mind and body and was held up to scorn and ridicule, was injured in his character and reputation, was prevented from attending her usual business and avocation, was injured in her reputation in the community and the said plaintiff has been otherwise damaged.

54. That at all times mentioned herein, the defendant police officers were employed in their respective capacities by the defendant CITY and were acting under the color of their official capacity and their acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the CITY OF NEW YORK.

55. That although defendants knew or should have known of the fact that this pattern of conduct was carried out by their agents, servants and/or employees, the defendant CITY has not taken any steps or made any efforts to halt this course of conduct, to make redress to the plaintiff or other citizens injured thereby, or to take any disciplinary action whatever against any of their employees or agents.

56. That the unlawful and illegal conduct of the defendants, their agents, servants and/or employees and each of them, deprived plaintiff of the following rights, privileges and immunities secured to her by the Constitution of the United States and of the State of New York: The right of plaintiff to be secure in her person and effects against unreasonable search and seizure under the Fourth, Fifth, and Fourteenth Amendments to the Constitution of the United States; the right of plaintiff to be informed of the nature and

cause of the accusation against her as secured to her under the Sixth and Fourteenth Amendments to the Constitution of the United States; and the right of plaintiffs not to be deprived of life, liberty or property without due process of law, and the right to the equal protection of the laws secured by the Fourteenth Amendment to the Constitution of the United States.

57. That the deprivation of plaintiff's constitutional rights was the result of a custom and/or policy adopted by THE CITY OF NEW YORK.

58. That the deprivation of plaintiff's constitutional rights was the result of the City of New York's custom and/or policy on using excessive force against innocents.

59. That the deprivation of plaintiff's constitutional rights was the result of the defendant CITY's custom and/or policy of unlawfully stopping and frisking citizens in the absence of any reasonable suspicion that said individuals were concealing weapons or contraband.

60. That the deprivation of plaintiff's constitutional rights was the result of the custom and/or policy of arresting innocent persons in order to meet productivity goals.

61. That the deprivation of plaintiff's constitutional rights was the result of the custom and/or policy of wrongfully arresting minority individuals.

62. That the deprivation of plaintiff's constitutional rights was the result of the custom and/or policy of manufacturing evidence against individuals.

63. That the deprivation of plaintiff's constitutional rights was the result of the custom and/or policy of assaulting, battering, falsely arresting and imprisoning individuals without probable cause or justification.

64. That the deprivation of plaintiff's constitutional rights was the result of the custom and/or policy of failing to discipline officers for falsely and improperly arresting individuals without probable cause or justification.

65. That the deprivation of plaintiff's constitutional rights was the result of the custom and/or policy of performing improper searches and seizures.

66. That the said customs and/or policies may be inferred from the existence of other similar Civil Rights actions that have been brought against The City of New York.

67. That by reason of the foregoing, this plaintiff was severely injured and damaged, rendered sick, sore, lame and disabled, sustained severe nervous shock and mental anguish, great physical pain and emotional upset, has suffered and continues to suffer serious and extreme mental and emotional anguish, distress and psychological damages and difficulties, some of which injuries are permanent in nature and duration, and plaintiffs will be permanently caused to suffer pain, inconvenience and other effects of such injuries; plaintiffs incurred and in the future will necessarily incur further hospital and/or medical expenses in an effort to be cured of said injuries; and plaintiffs have suffered and in the future will necessarily suffer additional loss of time and earnings from employment; and plaintiffs will be unable to pursue the usual duties with the same degree of efficiency as prior to this occurrence, all to plaintiffs' great damage.

68. That on or about February 11, 2017, in violation of the rights, privileges and immunities guaranteed to her under the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution and under the color of State law, the defendants acted individually and in concert causing the plaintiff to have been injured and damaged in an

amount exceeding the jurisdictional limit of this Court, to be determined upon the trial of this action.

SECOND CAUSE OF ACTION:
(FALSE ARREST AND IMPRISONMENT
OF PLAINTIFF JENELLE N. GILLIARD)

69. Plaintiff, JENELLE N. GILLIARD, repeats and realleges each and every allegation contained herein, as though the same were set forth at length.

70. That on or about February 11, 2017, at and/or near of 262 East 39th Street, County of Kings, City and State of New York, the defendants, their agents, servants and/or employees wrongfully and falsely arrested, imprisoned and detained plaintiff JENELLE N. GILLIARD, without any right or grounds therefore.

71. That on or about February 11, 2017, the defendants wrongfully and falsely accused the plaintiff JENELLE N. GILLIARD with violation of various sections of the Penal Law of the State of New York.

72. That the said arrest and imprisonment was caused by the defendants, their agents, servants and/or employees without any warrant or other legal process and without authority of the law and without any reasonable cause or belief that the plaintiff JENELLE N. GILLIARD was in fact guilty of such crimes.

73. That on or about February 11, 2017, the defendants and each of them acting individually and in concert and while on duty, arrested, detained and imprisoned the plaintiff even though the defendants knew or should have known that the plaintiff JENELLE N. GILLIARD was wholly innocent of the criminal charges then and there filed against her.

74. That while plaintiff was so engaged, as aforesaid, the defendants, their agents, servants and employees, wrongfully and unlawfully, against the plaintiff's wishes, without probable or reasonable cause, and on the sole charge, then made, charged that plaintiff violated various sections of the Penal Law of the State of New York, arrested and imprisoned the plaintiff and with full force of arms, they forcibly and violently seized, assaulted and laid hold of and compelled them to go with the said defendant police officers to be detained and imprisoned at the 67th Precinct, County of Kings, City and State of New York, and continuing to other places and times, including, but not limited to, Central Booking and in a detention cell located in the Criminal Courts Building, County of Kings, where the plaintiff was further detained and imprisoned until such time as he was arraigned.

75. That at all times relevant hereto, the defendants owed a duty directly to plaintiff to conform their conduct to a standard established by law for the protection of plaintiff.

76. That at all times relevant hereto, the defendants failed to act, protect and safeguard the plaintiff.

77. That at all times relevant hereto, the defendants breached their duty owed directly to the plaintiff which endangered the plaintiff's physical safety.

78. That the defendants, their agents, servants and/or employees acting within the scope of their authority and within the scope of their employment, detained and imprisoned the plaintiff even though the defendants, their agents, servants and/or employees had the opportunity to know or should have known, that the matters hereinbefore alleged, wrongfully, unlawfully and without a sufficient charge having been

made against the plaintiff, directed that the plaintiff be searched and placed in confinement at said locations.

79. That the plaintiff was wholly innocent of the said criminal charges and did not contribute in any way to the conduct of the defendants, their agents, servants and/or employees and were forced by the defendants to submit to the aforesaid arrest and imprisonment thereto entirely against her will.

80. That as a result of the aforesaid accusations made by the defendants, their agents, servants and/or employees acting under their employment and within the scope of their authority, made falsely, publicly, wickedly and maliciously, the plaintiff was compelled to appear before a Judge of the Criminal Court of the City of New York, County of Kings, to be arraigned.

81. That the defendants, their agents, servants and employees, as set forth on the aforementioned date, time and place, intended to confine the plaintiff; in that the plaintiff was conscious of the confinement; plaintiff did not consent to the confinement; and that the confinement was not otherwise privileged.

82. That by reason of the false arrest, imprisonment and detention of the plaintiff, plaintiff was subjected to great indignities, humiliation and ridicule, stripped-searched in being so detained, charged and prosecuted with various crimes, and greatly injured in her credit and circumstances and was then and there prevented and hindered from performing and transacting her necessary affairs and business and she was caused to suffer much pain in both mind and body, the loss of employment and the loss of employment opportunities.

83. That by reason of the foregoing, the plaintiff was severely injured and damaged, rendered sick, sore, lame and disabled, sustained severe nervous shock and mental anguish, great physical pain and emotional upset, have suffered and continue to suffer serious and extreme mental and emotional anguish, distress and psychological damages and difficulties, some of which injuries are permanent in nature and duration, and plaintiff will be permanently caused to suffer pain, inconvenience and other effects of such injuries; plaintiff incurred and in the future will necessarily incur further hospital and/or medical expenses in an effort to be cured of said injuries; and plaintiff has suffered and in the future will necessarily suffer additional loss of time and earnings from employment; and plaintiff will be unable to pursue the usual duties with the same degree of efficiency as prior to this occurrence, all to plaintiff's great damage.

84. That by reason of her false arrest and imprisonment, and the violation of the 24-hour arraignment rule, the plaintiff has been damaged in an amount exceeding the jurisdictional limit of this Court, to be determined upon the trial of this action.

THIRD CAUSE OF ACTION:
(MALICIOUS PROSECUTION OF
PLAINTIFF JENELLE N. GILLIARD)

85. Plaintiff JENELLE N. GILLIARD, repeats and realleges each and every allegation contained herein, as though the same were set forth at length herein.

86. That on or about February 11, 2017, at approximately 10:30 p.m. of that day, while plaintiff was lawfully and properly at and/or near 262 East 39th Street, County of Kings, City and State of New York, and at subsequent times thereafter, including but not limited to the 67th Precinct, Central Booking and at a detention cell at the Criminal Court Building, County of Kings, City and State of New York, the defendants, their agents,

servants and employees maliciously prosecuted and detained plaintiff JENELLE N. GILLIARD, without any just right or grounds therefore.

87. That the plaintiff was and is wholly innocent, and was forced by the defendants to submit to court proceedings.

88. That the defendants, their agents, servants and/or employees, falsely and maliciously and without probable cause or provocation charged the plaintiff with various sections of the Penal Law of the State of New York.

89. That the defendants, their agents, servants and/or employees acting in the performance of their employment and within the scope of their authority, testified falsely and withheld vital information before a Judge of the Criminal Court of the City of New York, County of Kings.

90. That upon examination, the said charges were falsely and maliciously made. Upon information and belief the Judge of the Criminal Court of the City of New York, County of Kings dismissed said charges.

91. That the said prosecution and criminal charges and hearings were instituted and procured by the defendants, their agents, servants and/or employees unlawfully and maliciously and without any reasonable or probable cause whatsoever; that the commencement and/or continuation of the criminal proceedings by the defendants against the plaintiff was without probable cause, with actual malice and was terminated in favor of the plaintiff.

92. That by reason of the aforesaid unlawful and malicious prosecution, the plaintiff was deprived of her liberty, was subjected to great indignity, humiliation, pain and great distress of mind and body and was held up to scorn and ridicule, was injured in her

character and reputation, was prevented from attending her usual business and vocation, was injured in her reputation in the community and the said plaintiff has been otherwise damaged.

93. That as a result of the aforesaid malicious prosecution, the plaintiff, JENELLE N. GILLIARD has been damaged in an amount exceeding the jurisdictional limit of this Court, to be determined upon the trial of this action.

FOURTH CAUSE OF ACTION:
(ASSAULT AND BATTERY OF JENELLE N. GILLIARD)

94. Plaintiff, JENELLE N. GILLIARD, repeats and realleges each and every allegation contained herein, as though the same were set forth at length herein.

95. That on or about February 11, 2017, at and/or near 262 East 39th Street, County of Kings, City and State of New York, plaintiff JENELLE N. GILLIARD was assaulted and battered by the defendant police officers and/or others acting in concert with them.

96. That the force used in the course of her arrest by the defendant officers was excessive, unnecessary, unwarranted and violent.

97. That as a result of the defendant officers' aforementioned assault and battery of the plaintiff JENELLE N. GILLIARD, plaintiff has been damaged in an amount exceeding the jurisdictional limit of this Court to be determined in a trial of this action.

FIFTH CAUSE OF ACTION:
(COMMON LAW NEGLIGENCE)

98. Plaintiff JENELLE N. GILLIARD, repeats and realleges each and every allegation contained herein, as though the same were set forth at length herein.

99. That the defendant, CITY, was negligent in its operation, management, supervision and control of their Police Department; in not providing adequate training of defendant police officers while at the Police Academy; in their supervision of defendant police officers while assigned to precincts; in failing to provide adequate supervision of defendant police officers during their training at the Police Academy.

100. That the defendants had a duty to use reasonable care in the stopping, detaining and the arrest of plaintiff.

101. That the defendants had a duty to ensure plaintiff was safely stopped, detained and arrested.

102. That the defendant P.O. DANIEL O'HARE (Shield #17735) was negligent in failing to use reasonable care in the detainment, confinement and prosecution of plaintiff JENELLE N. GILLIARD on or about February 11, 2017.

103. That the defendants P.O. "JOHN DOE" #1-10 were negligent in failing to use reasonable care in the detainment, confinement and prosecution of plaintiff JENELLE N. GILLIARD on or about February 11, 2017.

104. That the defendants P.O. "JANE DOE" #1-10 were negligent in failing to use reasonable care in the detainment, confinement and prosecution of the plaintiff, JENELLE N. GILLIARD on or about February 11, 2017

105. That by reason of the foregoing, the plaintiff was severely injured and damaged, rendered sick, sore, lame and disabled, sustained severe nervous shock and mental anguish, great physical pain and emotional upset, has suffered and continues to suffer serious and extreme mental and emotional anguish, distress and psychological damages and difficulties, some of which injuries are permanent in nature and duration, and

plaintiff will be permanently caused to suffer pain, inconvenience and other effects of such injuries; plaintiff incurred and in the future will necessarily incur further hospital and/or medical expenses in an effort to be cured of said injuries; and plaintiff has suffered and in the future will necessarily suffer additional loss of time and earnings from employment; and plaintiff will be unable to pursue the usual duties with the same degree of efficiency as prior to this occurrence, all to plaintiff's great damage.

106. That by reason of the negligence of the defendants, plaintiff JENELLE N. GILLIARD, has been damaged in an amount exceeding the jurisdictional limit of this Court, to be determined upon the trial of this action.

SIXTH CAUSE OF ACTION:
PLAINTIFF JENELLE N. GILLIARD'S VIOLATION OF RIGHT TO
BE FREE FROM UNREASONABLE SEARCHES
AND SEIZURES UNDER THE CONSTITUTION
OF THE STATE OF NEW YORK

107. Plaintiff, JENELLE N. GILLIARD, repeats and realleges each and every allegation contained herein as though the same were set forth at length herein.

108. That on or about February 11, 2017, at and/or near 262 East 39th Street, County of Kings, City and State of New York, in violation of the rights, privileges and immunities guaranteed to her under the Constitution of the State of New York, plaintiff JENELLE N. GILLIARD, was unlawfully searched and seized by the defendant police officers and/or others acting in concert with them, when said defendant police officers and/or others acting in concert with them, and each of them acting individually and in concert, while on duty, detained and searched plaintiff JENELLE N. GILLIARD, even though the defendants knew or should have known that the plaintiff was wholly innocent.

109. That by reason of the foregoing, the plaintiff was severely injured and damaged, rendered sick, sore, lame and disabled, sustained severe nervous shock and mental anguish, great physical pain and emotional upset, have suffered and continue to suffer serious and extreme mental and emotional anguish, distress and psychological damages and difficulties, some of which injuries are permanent in nature and duration, and plaintiff will be permanently caused to suffer pain, inconvenience and other effects of such injuries; plaintiff incurred and in the future will necessarily incur further hospital and/or medical expenses in an effort to be cured of said injuries; and plaintiff has suffered and in the future will necessarily suffer additional loss of time and earnings from employment; and plaintiff will be unable to pursue the usual duties with the same degree of efficiency as prior to this occurrence, all to plaintiff's great damage.

110. That by reason of her unlawful search and seizure, plaintiff JENELLE N. GILLIARD, has been damaged in an amount exceeding the jurisdictional limits of this Court, to be determined upon the trial of this action.

WHEREFORE, plaintiff demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action, together with interest and the costs and disbursements of this action.

Additionally, plaintiff demands in respect of all causes of action, the additional total sum of \$5,000,000.00 in punitive damages and attorney fees pursuant to 42 U.S.C. §1988.

Dated: New York, New York
February 9, 2018

Yours, etc.

BURNS & HARRIS, ESQS.
Attorneys for Plaintiff

BY: Wayne A. J. Wattley
Wayne A. J. Wattley
233 Broadway, Suite 900
New York, New York 10279
(212) 393-1000

ATTORNEY VERIFICATION

Wayne A J. Wattley, Esq. an attorney duly admitted to practice law in the Courts of the State of New York, shows:

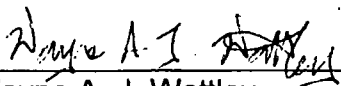
I am the attorney for the plaintiffs in the within action and have read the contents of the foregoing SUMMONS AND COMPLAINT the same is true upon information and belief.

This verification is made by this affirmant and not by said plaintiff because said plaintiff reside(s) in a County other than the County wherein your affirmant maintains his office.

The grounds of affirmant's knowledge and belief are as follows: Conference with clients and notes and records contained in the file maintained in the regular course of business.

The undersigned affirms that the foregoing statements are true under the penalties of perjury.

Dated: New York, New York
February 9, 2018



Wayne A. J. Wattley

Index No.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

JENELLE N. GILLIARD,

Plaintiff,

-against-

THE CITY OF NEW YORK,
P.O. DANIEL O'HARE (SHIELD #17735)
P.O. "JOHN DOE" #1-10 (shield # unknown),
P.O. "JANE DOE" #1-10 (shield # unknown)
(first and last names being fictitious and presently
Unknown, persons intended being police officers
And/or personnel who were involved in the incident
of February 11, 2017),

Defendants

SUMMONS AND COMPLAINT

BURNS & HARRIS
Attorneys for Plaintiff(s)

**233 Broadway, Suite 900
New York, New York 10279
(212) 393-1000**